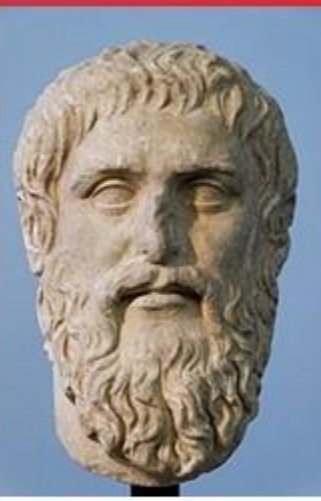
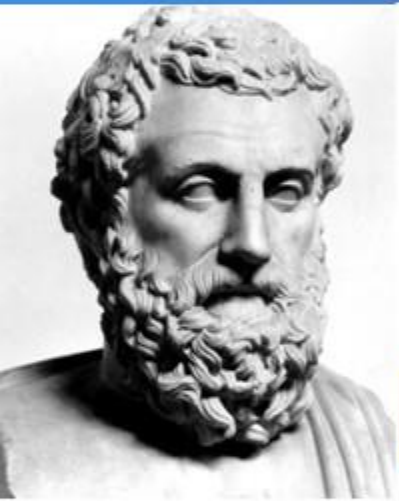


ETHICS, INTEGRITY & APTITUDE



APTITUDE

MODULE – 26

**FOUNDATIONAL VALUES
FOR CIVIL SERVICE**

THE FACT



UNDP HDI Rankings 2019

- India – 129
- Sri Lanka – 71
- Maldives -104

Despite significant economic growth, and substantial increases in social sector expenditures, India continues to perform far worse than countries much poorer than her on key development parameters.

It is an indicator of just how deep the problem of accountability is. Accountability failures have meant that absenteeism, incompetence, inefficiency and corruption characterize every core service that the state is obliged to deliver to its citizens.

Accountability can broadly be defined as the **obligation** of those holding power to **take responsibility** and **be held answerable** for their behaviour and actions.



WHERE DOES THIS OBLIGATION COME FROM?

1

A moral-ethical need to account for one's behavior

OR**2**

A legal requirement

WHAT IS OBLIGATION?



ACCOUNTABILITY

The state of **being liable**, or answerable or responsible; Take ownership for **outcomes** - successes or failures

Bureaucrats have become directly accountable to citizens. They have to **respond to moral compass** of the citizens.

As civil services officers **have discretionary powers**, they must be **provided with guiding principles** to prevent abuse of power.

ACCOUNTABILITY AND RESPONSIBILITY

Responsibility is the acknowledged **obligation** for action or behavior within frameworks of roles and morals

Accountability is referred to as the **manifestation** of claims to responsibility.

Who is Responsible

The person who is *assigned* to do the work

Who is Accountable

The person who makes the *final decision* and has the *ultimate ownership*

ACCOUNTABILITY

- 1 It is a **relational concept**, as it concerns the **relationship between those** that **perform** an action or deliver a service and **those** on whom **the service has an effect**.
- 2 Accountability can be conceptualized in terms of **principles and agents**, where accountability is a relationship between a principal X and an agent Y acting on behalf of Principal X.
- 3 The first is the question of **determining who should be accountable** to whom and for what? Second is that of **developing institutional mechanisms** and an incentive structure for sanctions and rewards on the basis of which accountability is realized.

There are two critical elements to actualizing this notion of accountability.

Accountability has an **answerability element**- the need for justification of actions, and an **enforcement element**- the sanctions that can be imposed if actions or justifications are judged unsatisfactory.

TWO ELEMENTS



1 **Public accountability**- the need for the institutions of the state to be accountable for its actions- stems out of a social contract that citizen's share with the state. There are institutional provisions to ensure that the state respects this contract.

2 There are mechanisms for **external accountability** or accountability directly to citizens. There are also mechanisms for **internal accountability** – institutional checks and balances and internal oversight

3 Public accountability is realized through a 'long route' where external and internal accountability - the two arms of the long route- operate in tandem.

EXAMPLES OF INTERNAL ACCOUNTABILITY

- The constitutional separation of powers into the judiciary, executive and the legislature
- Internal performance monitoring and official oversight including bodies like the auditor general and ombudsmen



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ENSURING PUBLIC ACCOUNTABILITY

1 First, citizens must be able to draw on external accountability mechanisms to express their preferences and hold the state politicians and senior levels of the administrative bureaucracy- to account for the fulfillment of these preferences.

2 The state in turn, acting as an agent for its citizens, must be able to activate internal accountability mechanisms to transmit these demands to the actual provider of services (line agencies, departments, public sector bodies) and hold them accountable for service provided.

3 Accountability is ensured when the incentives to service providers are aligned to the ultimate preference of citizens and providers are made directly accountable to people.

HOW IS IT REALISED?

Public accountability is realized through a 'long route' where external and internal accountability - the two arms of the long route- operate in tandem.



THE CASE OF EDUCATION IN UTTAR PRADESH

- An analysis of the political economy of education in Uttar Pradesh by Kingdon and Muzamil (2003) reveals that teachers are strongly unionized and command significant political clout.
- Many teachers are active politicians themselves. It is estimated that the proportion of teachers elected to the Upper House in UP range varies from 13% to 22% of the total members. In the lower house, teachers accounted for 10.8% of all elected MLAs in the 1993 election and 8.7% in the 1996 election. Their share of cabinet posts was even higher at 16.3% in 1991-92.
- This rather high representation of teachers in the UP politics persists till today. Mayawati, the ex UP Chief Minister, was herself a teacher before she took the political plunge. What does this collusion mean for accountability?
- When interests so clearly collide, the system is rid of any incentives to make policy choices that go against teacher's interests or create mechanisms for imposing sanctions for poor performance. This is one the primary reasons for the persistence of absenteeism and poor learning achievement levels in India.

1 In India, mechanisms for ensuring external accountability of policy makers are extremely limited.

2 Emanating in part as a consequence of its colonial legacy which necessitated an opaque administration that was distanced from its people - administrative or civil service accountability in India has always been internal.

3 External accountability is conceptualized in the narrow framework of elections and demanded specifically of elected representatives. In this framework, civil service accountability to the people is at best 'indirect' through accountability to the political class.

This notion has two problems

1. It erodes accountability of the civil services for policy related decisions and relevant outcomes.
2. The hierarchical nature of the bureaucracy which privileges a top down approach to policy making.



4 One argument made in favor of internal accountability of the civil services is that accountability to the people is achieved indirectly through accountability to the political class, who in turn are accountable to the people through the electoral process.

5 But the separation of powers is very weak.

6 Rampant politicization of the bureaucracy is an outcome of this politics. Frequent transfers, arbitrary promotions and appointments made by political bosses are the norm in the bureaucracy today.

Moreover, incentives for performance are weak and corruption becomes unavoidable.



WEAK ACCOUNTABILITY OF SERVICE PROVIDERS

1 For the long route of accountability to be realized, policy makers must be able to **activate internal accountability mechanisms** and **create institutional incentives**, through which providers act in the interests of people and accountability is ensured.

2 The sheer **size and scale of government operations** makes **direct monitoring**- even for the best intentioned civil servant- of the front-line service provider **almost impossible**.

3 On occasions where **monitoring** does happen, it is **undertaken** necessarily **on the basis of inputs** rather than on outcomes.

Another factor that has contributed to ineffective monitoring is: information on public expenditures is weak.

Example of Primary Health Sector

- Vacancies
- Absenteeism
- Incompetence
- Corruption



1 **Social Accountability** represents a form of accountability that breaks the state monopoly on oversight functions and actively encourages citizens to participate in its institutions.

2 There are some important examples of state initiated reforms that have attempted to strengthen social accountability with varying levels of success.

EXAMPLES OF SUCH EFFORTS

- Efforts to strengthen decentralization of government through the 73rd and 74th Constitutional Amendment
- Localization of monitoring through the creation of community based oversight bodies
- Citizen charters and the Right to Information Act



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INSTITUTIONAL DESIGN FOR ACCOUNTABILITY

REGULAR, RELIABLE AND RELEVANT INFORMATION

1 Transparency holds the key to strengthening accountability. The passage of the Right to Information Act in 2005 is a critical step in the direction of institutionalizing transparency in administrative structures.

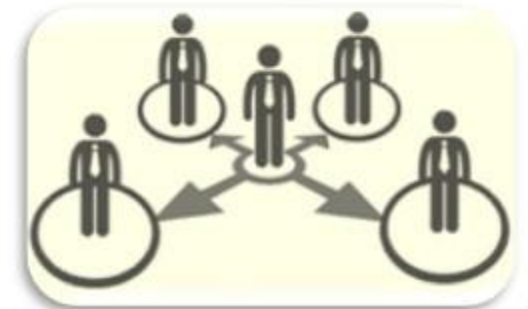
2 However, transparency is not itself sufficient to ensure accountability.

3 For information to result in accountability it needs to be produced regularly, reliably and in a fashion that is relevant to citizens. Demystifying complex government records so that they are intelligible to citizens is key.

TWO KEY CHARACTERISTICS OF AN ACCOUNTABLE SYSTEM

i Regular, reliable and relevant information

ii Clear delegation of roles and responsibilities with commensurate powers and resources



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INSTITUTIONAL DESIGN FOR ACCOUNTABILITY

DELEGATION OF ROLES AND RESPONSIBILITIES

1 External accountability requires reorganizing internal administrative procedures and accountability mechanisms. One important aspect of this is to ensure that every level of the administrative system has **clearly defined roles and responsibilities** with goals that are clearly specified.

2 There needs to be a **clear basis** upon which specific roles and activities are assigned to specific levels of the system. Also, the **delegation** of roles and responsibilities must be accompanied by the **delegation of resources** that would allow functionaries to fulfill their roles.



delegation



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INSTITUTIONAL DESIGN FOR ACCOUNTABILITY

DELEGATION OF ROLES AND RESPONSIBILITIES

- a** Discretionary activities should be assigned to front-line staff with the powers and resources- including some flexibility over budgets so that the nature of the activity can be adjusted to adapt to local conditions.
- b** Transaction intensive activities require repeated transactions at the local level. The greater the transaction intensity, the greater the need for local control.
- c** If the activity requires technical expertise, performance is best judged by experts. But if the activity is simple and with easily identifiable performance indicators, local level monitoring is best.

Three key principles of accountability on the basis of which role and responsibilities can be assigned

- a** Degree of discretion
- b** Degree of transaction intensity
- c** Ability to observe performance

DECENTRALIZATION

The 73rd and 74th amendments have resulted in the uneven devolution of power with political decentralization running far ahead of administrative decentralization - where Functions, Funds and Functionaries (3Fs) are yet to be devolved adequately.

MONITORING OF PUBLIC EXPENDITURES

In 2008, the central government recommended the creation of a Central Plan Schemes Monitoring System (CPSMS) - now called PFMS - to track and monitor expenditures at the state and district level for centrally sponsored schemes. But real expenditures are incurred at levels far below the district and usually the service delivery point.

Three key mechanisms and instruments to ensure accountability are:

- a Greater decentralization
- b Greater monitoring of public expenditures
- c Mandatory social auditing

In 2006, The Government of Andhra Pradesh (AP) instituted a process to develop an information management system (MIS) to track the implementation of the National Rural Employment Guarantee Act (NREGA) in the state.

MANDATORY SOCIAL AUDITING

1

The concept of **social audits** - the cross-verification of government records and data with information on the ground and the sharing of audit findings with government through public hearings- **has gained much ground** in recent years as **an important tool through which accountability can be realized**.

2

Social audits of NREGA works is mandatory and some state governments have taken path breaking steps in the direction of institutionalizing social audits in to the everyday functioning of government.

SOCIAL AUDITS IN ANDHRA PRADESH

- An instance of an activist government is Andhra Pradesh which has since the inception of the program in 2006 been conducting systematic and regular social audits on its NREGA works across the state.



SUCCESS OF SOCIAL AUDITING

1 the success of a social audit is crucially dependent on transparency. To conduct a social audit, citizens must have access to information on the basis of which government performance can be verified.

2 For social audits to take root, communities need to be mobilized both to generate demand for social audits and for communities to participate in them.

3 Successful social audit requires timely response and follow up to social audit findings.

How can greater citizen accountability be achieved at higher levels of service?

- Setting and widely disseminating performance benchmarks
- Linking performance with outcomes



TAKING ACCOUNTABILITY

Level 1: Delivers Results Consistently

- Demonstrates sincerity and commitment to the job/duty
- Does not make excuses, demonstrates a 'can do' attitude and delivers consistently
- Takes personal ownership for the quality of own work and keeps stakeholder informed about the progress
- Remains focused on delivery within specified timeframe

Level 2: Delivers Results Even In Unfavourable Conditions

- Remains positive and focused on achieving outcomes despite setbacks
- Sets and achieves challenging goals and monitors quality regularly
- Regularly reviews performance priorities and fine tunes to achieve results
- Takes ownership of any shortfall and draws lessons to improve performance

Level 3: Manages Performance

- Clarifies priorities, roles, and responsibilities; ensures role and talent fit and secures individual and team ownership of objective
- Communicates expectation and standard clearly
- Promotes a culture of accountability for service delivery to citizens
- Provides feedback to support performance improvement
- Maintains effective performance in difficult and challenging circumstances, and encourages others to do the same
- Reviews, challenges, and adjusts performance levels to ensure quality outcomes are delivered on time
- Takes accountability for team performance especially in case of failure

*Source: Government of India and UNDP's Civil Services Competency Dictionary

TAKING ACCOUNTABILITY

Level 4: Takes Ownership Of Others' Performance

- Energises and drives others for achieving set objectives
- Holds others accountable for delivering high standards and effective performance, and assists them continuously to improve performance while serving the citizens
- Maintains a strong focus on priorities and swiftly responds to changing requirements
- Incentivises desired behaviours and rewards successful performance



Level 5: Drives Performance Culture

- Takes accountability for achieving the Department's strategic priorities
- Drives a performance culture across the Department to achieve results through others
- Resolutely holds others accountable for outcomes to the citizens
- Drives long-term objective of the organisation even in the face of short-term difficulties



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